

Stereo HCJAD 38  
**Judgment Sheet**

**IN THE LAHORE HIGH COURT, LAHORE.**

**JUDICIAL DEPARTMENT**

**Case No. W.P. No.30958 of 2017**

|                                             |               |                                             |
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| <b>Pakistan Pharmacists<br/>Association</b> | <b>Versus</b> | <b>Province of Punjab<br/>and 3 others.</b> |
|---------------------------------------------|---------------|---------------------------------------------|

**JUDGMENT**

Date of Decision: 09.03.2018

Petitioner by: M/s. Mansoor Usman Awan,  
Shahzeen Abdullah, Hussain  
Ibrahim & Barrister Hamid Azim  
Leghari Advocates.

Respondents by: Mr. Ashfaq Ahmad Kharal,  
Assistant Advocate-General.  
Barrister Haris Ramzan, Director  
Legal.  
Mr. Aleem Akhtar Cheema, Deputy  
Director Legal.  
Mr. Muhammad Khurished,  
Deputy Director Legal.  
Mr. Imran Aslam Kharal, Advocate  
for NTS.

**JAWAD HASSAN, J.-** Through the instant Constitutional  
petition, filed under Article 199 of the Constitution of the Islamic  
Republic of Pakistan, 1973 (the “Constitution”), the Petitioner has  
made the following prayers:

*“In view of the foregoing, it is most respectfully prayed  
that the instant petition may kindly be accepted and this  
Honourable Court may kindly be pleased to:*

*Declare that the Impugned Recruitment Process is ultra  
vires the provisions of Drugs Act, 1976 and the Punjab*

*Drugs Rules, 2007, amounts to abdication and outsourcing of regulatory functions and is, therefore, liable to be declared illegal, unlawful and of no legal effect;*

*Declare that the Impugned Recruitment Process offends Articles 4, 10A and 25 of the Constitution and is liable to be struck down;*

*Restrain the Respondents from proceeding further with the Impugned Recruitment Process, during the pendency of the titled petition.”*

2. Basically, the Petitioner is alleged to be a national professional body of the Pharmacists and filed this petition through the duly authorized signatory of the Petitioner being aggrieved by the recruitment process initiated by the Respondent No.2 for the appointment of Pharmacists (Field Force) in BSP-17 on contract basis for two years.

3. In reply to the petition, the Respondents No.2 and 3 duly filed their report and parawise comments denying all the allegations levelled in the petition.

4. Learned counsel for the Petitioner *inter alia* submitted that the impugned recruitment process is totally illegal as the Respondent No.2 has not been empowered under the law to create such classes of Pharmacists i.e. (Field Force); that the Respondents have not duly fulfilled the requirements under the law for appointment on a specific post/category e.g. Pharmacists (Field Force) either on regular or contract basis; that it was mandatory for the Respondents to create specific post for a specific time period which has not been done in

accordance with law; that the recruitment process is being conducted against the Contract Appointment Policy, 2004 (the “**Policy**”); that according to the Policy minimum period for the contract appointment should be three years to five years but the Respondents are making appointment only for a period of two years; that the assignments of the posts which are being filled by the Respondents are purely permanent nature; that there was no need to make fresh appointments on contract basis as already the members of the Petitioner are performing duties with due diligence; that the persons already appointed have a legitimate expectancy to be able to perform functions as a part of the field force, which shall be a determinative factor in their future promotions. To fortify his contentions learned counsel for the Petitioner has placed reliance on the case titled **Parvez Aslam Mian Muhammad Aslam v. Synthetic Chemical Company Limited, Karachi and others** (PLD 1980 Karachi 401), **Muhammad Yasin Fecto v. Muhammad Raza Fecto** (1998 CLC 237), **Lahore Development Authority through D.G. and others v. Ms. Imrana Tiwana** (2015 SCMR 1739) and **Muhamamd Yasin v. Federation of Pakistan** (PLD 2012 SC 132).

5. On the other hand learned Law Officers vehemently controverted the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the petition on the grounds that the petition is not maintainable in its present form as the Petitioner has concealed the actual facts of the case; that the Petitioner has not come to the Court with clean hands; that the Petitioner has no *locus*

*standi* to file this petition as it cannot claim any grievance against the recruitment process which is being carried out strictly in accordance with law; that the Petitioner never remained part of the under challenged recruitment process, as such it is not an aggrieved person; that this petition has been filed on the basis of *mala fide* mere to blackmail the Respondents; that actually the Government/ Respondents have adopted a zero tolerance policy against adulterated and spurious drugs and malpractices and has reiterated his commitment in weeding out evil trade of counterfeit, forged and substandard medicines from the Province of Punjab as directed by the Hon'ble Supreme Court of Pakistan; that for the achievement of the said object the said recruitment process has been conducted for the appointment of best suitable professionals in the field formation for provisions of safe and standardized drugs to the public at large; that all the posts are being filled by the Respondents after fulfilling all the legal requirements; that the said recruitment process has been initiated after recommendations of the competent authority; that the appointments are being made as per the Policy; that as the Petitioner is disqualified to file this petition, therefore, to fill this lacunae application by some of its members have been filed to be impleaded as co-Petitioners which cannot be allowed in any circumstances as an after thought. Learned Law officer also laid much stress on the point that the Petitioner is a disputed registered body and has nothing to do with the recruitment process and not aggrieved by any act or order of the Respondents. In support of their contentions, reliance has been placed on the case titled **Kamran Martim v. Mst. Siera Bibi and 4**

others (2017 PLC (C.S.) 597), Fida Hussain and another v. Mst. Saiqa and others (2011 SCMR 1990), Muhammad Amir v. Umer Hayat and 5 others (2010 CLC 1798), Anjuman Fruit Arhtian and others v. Deputy Commissioner, Faisalabad and others (2011 SCMR 279) and Haseeb Raza Khan v. Sub Registrar and others (2017 PTD 1064).

6. In rebuttal, the learned counsel for the Petitioner submitted that the Petitioner is the national professional body of Pharmacists and its members are registered in accordance with the Pharmacy Act, 1967 as Pharmacists hence, it is fully competent to file this petition, therefore, this petition is maintainable; that the impugned recruitment process threatens and obstructs the regulatory functions and powers conferred on the members of the Petitioner under the law, as such the Petitioner is aggrieved of the impugned recruitment process.

7. I have heard the arguments of both the sides at length and perused the record minutely.

8. From the perusal of record it reveals that the Respondent No.2 in its report and parawise comments alleged that the Government of the Punjab has adopted a zero tolerance policy against adulterated & spurious drugs & malpractices as directed by the Hon'ble Supreme Court of Pakistan and has reiterated his commitment in weeding out evil trade of counterfeit, forged and sub-standard medicines from the Province of Punjab; that to achieve the said objective, the Respondents has decided to recruit best suitable professionals in the field formation for provisions of safe and standardized drugs to the

public at large in Province of Punjab, consequently, the under challenged recruitment process has been initiated for appointment of suitable persons as Pharmacists (Field Force). The said fact has also been reiterated by Mr. Ashfaq Ahmed Kharal, learned Assistant-Advocate General and further adds that the Hon'ble Supreme Court of Pakistan on various health issues including Suo Motu Case No.623/P of 2017 has issued various directions to the concerned authorities through Attorney General and Advocate General to overcome the said issues.

9. Whereas on the other hand Mr. Mansoor Usman Awan, Advocate for the Petitioner contended that the impugned recruitment process suffering from various legal infirmities is liable to be declared illegal; recently the Respondent No.2 has completed and notified appointment of Pharmacists on regular basis; that the appointments notified on 03.04.2017 are made through a competitive and much more credible examination and testing process carried out by the Punjab Public Service Commission; that the Respondent No.2 has chosen to appoint Pharmacist, and that too in specific districts, on contract basis merely a little over a month after the regular recruitment; that the persons already appointed have a legitimate expectancy to be able to perform functions as a part of the field force, which shall be a determinative factor in their future promotions.

10. In order to examine the *locus standi* of the Petitioner it is noted that the Petitioner/Pakistan Pharmacists Association is an Association; neither it nor any its member has participated in the

recruitment process under challenged. Furthermore, the impugned recruitment process is not directly or indirectly effecting the services of the members of the Petitioner, therefore, nowhere from the record, it is established that the Petitioner is aggrieved of the recruitment process initiated by the Respondents for the appointment of the Pharmacists (Field Force) on contract basis or its fundamental rights have been infringed through the under challenged recruitment process. The recruitment process was initiated by the Respondents through the advertisement dated 14.05.2017 with certain terms and conditions. The Petitioner, through the instant petition has invoked the Constitutional jurisdiction of this Court under Article 199 of the Constitution, therefore, it has to establish that its legal or fundamental rights guaranteed under the Constitution have been violated. Similarly, the Petitioner has to prove its *locus standi* to seek direction for initiation of action against the Respondents under the denial of its legal rights, if any.

11. It is *sine qua non* for initiation of proceedings under Article 199 of the Constitution that the Petitioner should have a *locus standi* to institute the proceedings or in other words the Petitioner should be an aggrieved party from the action of the Respondents. Pivotal judgment of the apex Court on this issue is **Mian Fazal Din v. Lahore Improvement Trust, Lahore** (PLD 1969 SC 223) and the Lahore High Court titled **Montgomery Flour and General Mills Ltd., Montgomery v. Director, Food Purchases, West Pakistan etc.** (PLD 1957 (W.P) Lahore 914) wherein it was observed that for a person to

have *locus standi* to initiate a petition for issuance of writ, he must have some right in the matter and he needs not have a right in that strict sense of the term which is provided in Article 170 of the Constitution. In the case titled **Dr. Imran Khattak and another v. Ms. Sofia Waqar Khattak, PSO To Chief Justice and others** (2014 SCMR 122) the Hon'ble Supreme Court of Pakistan held as follows:

*“It would exercise such jurisdiction under Article 199(1)(a)(i), (ii) and (c) on the application of an aggrieved person while under 199(1)(b)(i) & (ii) on the application of any person whether aggrieved or not, and not on an information or on its own knowledge. In the case of "Tariq Transport Company, Lahore v. Sargodha Bhera Bus Service and others" (PLD 1958 SC (Pak) 437), this Court held that a High Court was not competent merely on an information or on its own knowledge to commence certiorari proceedings or other proceedings of a similar nature under Article 170 of the Constitution of Islamic Republic of Pakistan, 1956. In the case of "Fazl-e-Haq, Accountant General, West Pakistan v. The State" (PLD 1960 SC (Pak) 295), this Court reiterated the view by holding that the extraordinary jurisdiction relating to a writ could only be exercised by the High Court when moved by a party whose legal rights have been denied”*

Moreover, in **Hafiz Hamadullah v. Saifullah Khan and others** (PLD 2007 SC 52) the apex Court held as follows:

*“With regard to the first objection it may be noted that under Article 199(1)(a) of the Constitutional jurisdiction of the High Court can be invoked by an aggrieved person which denotes a person who has suffered a legal*



*grievance, against whom a decision has been pronounced which has wrongfully deprived him or wrongfully refused him something which he was legally entitled to. It is also the requirement that the person invoking the constitutional jurisdiction under Article 199 of the Constitution has to establish that any of his legal or fundamental right guaranteed under the Constitution has been violated resulting in legal loss”*

Further, in **N.W.F.P. Public Service Commission and others v. Muhammad Arif and others** (2011 SCMR 848) it was observed as follows:

*“The right which is the foundation of an application under Article 199 of the Constitution is a personal and individual right. The legal right may be a statutory right or a right recognized by the law. A person can be said to be aggrieved only when a person is denied a legal right by someone who has a legal duty to perform relating to the right. There must not only be a right but a justiciable’ right in existence, to give jurisdiction to the High Court in the matter. Unless whatever right personal or otherwise, on which the application is based is established, no order can be issued under Art.199.”*

12. In view of the above judgments of Hon’ble Supreme Court of Pakistan and from the facts of the case, it is evident that the Petitioner is not aggrieved of any orders, acts or proceedings done or taken against it by the Respondents. Infact, the impugned recruitment process is only between the Respondents and the candidates for Pharmacists (Field Force) which has nothing to do with the Petitioner, therefore, the Petitioner is not an aggrieved person to approach this

Court under Article 199 of the Constitution. The Petitioner has only written the Respondents on 20.05.2017 with the prayer that to kindly review process but without showing any grievances or denial of the rights to its members. Reliance is also placed on the case titled **Ishaq Masih v. District Coordination Officer etc.** (2017 PLC (C.S.) 528) wherein it has been observed as under:

*“Hon’ble Justice Fazal Karim in his book “**Judicial Review of Public Actions**” has elaborated the distinction between “**Aggrieved Party**” and “**Aggrieved Person**” at page-977 Volume-2 which reads as follows:*

***“Distinction between “Aggrieved Party” and “Aggrieved Person”***

*It will be noticed that sub-clause (a) of clause (1) of Article 199 of the Constitution uses the expression “aggrieved party” while sub-clause (c) of clause (1) of that Article uses the expression “aggrieved person”. On general principle, when the Legislature uses two different expressions, the intention is to convey different meanings. The word “party” can assume importance in cases in which there had been proceedings under the relevant statute to which the applicant under Article 199 was not a party, as it did in Haji Adam v. Settlement and Rehabilitation Commissioner. But the word “party” as used in Article 199, clause (1)(a) means one who is competent to maintain an action, and a person not a Party to the proceeding under the relevant statute, can seek relief under Article 199, if he shows that the*

*decision is directed against him or his property in the sense that the enforcement of the decision would involve special, immediate and in its effect a direct injury to his interest.” (Tariq Transport Company Case- PLD 1958 SC (Pak) 437).*

Similarly at page-980 of the “Judicial Review of Public Actions” Locus Standi is elucidated in the following terms:

**“Locus Standi is a Question for Decision, not of Discretion.**

*The question whether an applicant is or is not an aggrieved party or person within the meaning of Article 199 is not a matter in the discretion of the Court. “The matter is one for decision, a mixed decision of fact and law, which the Court must decide on legal principles” (Lord Wilberforce in IRC v. Fed of Self Employed (1981) 2 All ER 93).*

#### **Object of this Provision**

*The right to be satisfied about the applicant’s locus standi, said Lord Scarman in IRC v. Fed. Of Self Employed [(1981)2 All ER 93] enables the Court to prevent abuse by busy bodies, cranks and other mischief-makers. It is as Lord Wilberforce said in the same case, an important safeguard against the Court being flooded and public bodies harassed by irresponsible applications.”*

13. From the perusal of record it is evident that the Petitioner is not aggrieved and has no *locus standi* to file this petition. The Petitioner has not been able to disclose anything which shows that the Petitioner

is aggrieved by the action of the Respondents. The grounds, taken by it for disqualification of new recruits and affecting the fundamental rights of the Petitioner in any manner, do not satisfy and convince the Court. It is important to note that the Petitioner neither has stated in the petition nor attached any document/order of the Respondents to show that it is aggrieved of the acts/proceedings of the Respondents. In this regard the Petitioner has only prayed that the impugned recruitment process be declared illegal, unlawful and of no legal effect.

14. Admittedly, the petition is filed by the Association (*Pakistan Pharmacists Association*) and the question arises here that whether, in service matters of appointment or transfer, associations can file writ petitions? The action of the Government in appointing/transferring certain people are actions *in personam*, not *in rem* because it is for only those candidates who applied. In this case, neither the Petitioner shown that its members have applied nor it shown that such appointments will affect the rights of the members of the Petitioner or the Petitioner. Therefore, associations are not aggrieved persons within the meaning of Article 199 of the Constitution. In this regard this Court has recently held in **Pakistan Medical Association v. Pakistan 2016 PLC (CS) 676** *that an association does not have locus standi to file a writ petition with regards to appointments and transfers. It has been held therein after considering the case law on this point that the right which is the foundation of an application under Article 199 of the Constitution, is a personal and individual*

*right. The legal right may be statutory right or a right to be recognized by the law. A person can be said to be aggrieved only when a person is denied a legal right by someone who has a legal duty to perform relating to the right.* In the instant case only a prayer has been made by the Pakistan Pharmacists Association that the Impugned Recruitment Process is ultra vires the provisions of the Drugs Act, and the Punjab Drugs Rules, 2007, amounts to abdication and outsourcing of regulatory functions and is, therefore, liable to be declared illegal, unlawful and of no legal effect. Any Member of the Association individually could challenge the same if he was aggrieved, which infact he was not, but he has not come forward to challenge the same. The Petitioner/Association being a third party, in my view, had no *locus standi* to challenge the impugned advertisement nor it falls within the ambit of aggrieved party. Recently the Hon'ble Division Bench of this Court in case titled **Kamran Martin v. Mst. Siera Bibi and 4 others (2017 PLC (C.S.) 597)** has held that "it is not the case of the Respondent No.1/Petitioner that along with the Appellant she also qualified and would be the next candidate, in case the Appellant is declared disqualified, rather she did not pass the interview and admittedly exiled from the recruitment process. Therefore, the Petitioner cannot be said to be an aggrieved person and has *locus standi* to file the writ petition based on the principle laid down by the Hon'ble Supreme Court of Pakistan. Furthermore, the Respondent No.1/Petitioner has not attached any document/order of the Respondents Nos.2 to 5 to show that she has been aggrieved of the acts/proceedings of the said Respondents. In

this regard the Petitioner has only prayed that the writ petition be accepted and the recommendations of the Respondent No.4 may be declared illegal, discriminative, without following the merit policy and may be declared null and void.”

15. The Sindh High Court in two judgments (**EOBI Officers Association of Pakistan v. EOBI 2011 PLC (CS) 336** and **Mutual Funds Association of Pakistan v. Federation of Pakistan 2010 PLC 306**) has also held that writ petitions in such circumstances are not maintainable. The Petitioner is an Association of Pharmacists working under the surveillance of the Respondents and the reliefs prayed for are not in respect of any of the rights of the Association but rights of individual employees. Whether an association can maintain petition in respect of rights of its individual members is a question which was extensively considered by the Hon’ble Division Bench of this Court in case titled **Messrs Mutual Funds Association of Pakistan (MUFAP) v. Federation of Pakistan through Secretary, Ministry of Finance, Government of Pakistan and another (2010 PLC 306)** and it was held as under:---

*"10. **In Pakistan Steel Re-rolling Mills Association v. Province of West Pakistan, PLD 1964 Lahore 138**, it was argued by the respondent that petitioner being an association of Re-rolling Industry is not an aggrieved person for the purpose of Articles 98 of the Constitution of 1962 (corresponding to Article 199 of the Constitution of 1973). The subject-matter was that certain notification for declaration of minimum wages was made and the association challenged this notification. Division Bench*

*of the West Pakistan High Court which was seized of the matter held as under:--*

*"It was said that the association is an "aggrieved party" because it enjoys a consultative status for operating the Ordinance, and that the grievance made in the petition is that in the process of setting up of the minimum Wages Board and the recommendations made by the Board, there has been a departure from the provisions of the Ordinance. An added strength was given to this contention by the fact that there was no other association representing the Steel Mills Owners and that the petitioner-Association was a registered body under the Trade Organization Ordinance of 1961. We consider that none of these considerations confers on the association the character of an aggrieved party within the meaning of Article 98 of the Constitution, as the grievance complained of must in its effect entail a direct injury to the petitioner to make it an aggrieved party, and the injury has to be co-related to the relief sought in the petition to avoid that injury."*

16. Moreover, in case titled **Democratic Workers' Union C.B.A. v. State Bank of Pakistan, 2002 PLC (C.S.) 614**, the Petitioner was a Collective Bargaining Agent and it filed petition seeking prayer for formulation of recruitment policy and also against appointment of certain persons. The Division Bench held that the Petitioner being a Collective Bargaining Agent could not claim *locus standi* to invoke jurisdiction of this Court under Article 199 of the Constitution, for the alleged violation of statutory or fundamental rights of its members.

17. Furthermore, in case titled **Province of Balochistan through Secretary Excise and Taxation Department, Civil Secretariat,**

**Quetta and 2 others v. Murree Brewery Company Ltd. through Secretary PLD 2007 SC 386**, a notification issued by the Provincial Excise Department imposing new duties/fees on distributors of alcoholic beverages was challenged. The Petitioner was manufacturer of such alcoholic beverages. It was contended that the permit fee was imposed not on the manufacturer but on its distributors and therefore it is not the manufacturer who can be considered to be an aggrieved person for the purpose of maintaining Constitutional petition. The Supreme Court after referring to a number of cases from Pakistan as well as from Indian jurisdiction held that even if imposition of the fee made products of the Petitioner more expensive, the Petitioner was not an aggrieved person within contemplation of Article 199 of the Constitution of Islamic Republic of Pakistan. Therefore, as far as Petitioner is concerned, it is not entitled to maintain this petition, in any case.

18. Mr. Ashfaq Ahmed Kharal, learned Assistant-Advocate General states that there is a dispute regarding Election issues between the Petitioner and its other members pending adjudication before the Civil Court, Lahore. The Respondents contend that the Petitioner is a disputed registered body whose management is under dispute, hence this petition is not competent because the Petitioner does not fall within the definition of an aggrieved person under Article 199 of the Constitution and has nothing to do with the recruitment process. It is also contended that regarding the legal status of the Petitioner civil suits are also pending before the Court of competent jurisdiction between its members. The pendency of litigation in this regard before



the Civil Courts is not denied but the Petitioner contended that mere filing of civil suits does not affect its veracity. Admittedly, the litigation qua the legal status of the Petitioner is pending adjudication before the Civil Court, therefore, the matter involves disputed question of facts which cannot be resolved through Constitutional jurisdiction of this Court. In this regard reliance is placed on the case titled **Fida Hussain and another v. Mst. Saiqa and others** (2011 SCMR 1990).

19. On the touchstone of the above principles of the apex Court and the foregoing reasons, the instant petition is not maintainable and accordingly dismissed.

20. During the pendency of this petition, the Respondents filed Application under Order VII Rule 11 of Code of Civil Procedure, 1908 (CPC) (C.M. No.4/2017) which was duly replied by the Petitioner. Some Applicants also filed application Under Order I Rule 10 CPC (C.M. No.6/2017) to be impleaded as Co-Petitioners in the main petition reply of which has also been filed by the Respondents. As the main case has been dismissed on merit being not maintainable, therefore, the above referred applications are disposed of accordingly.

(JAWAD HASSAN)  
JUDGE

Approved for reporting

JUDGE